

UNITED STATES DISTRICT COURT

[DISTRICT], [DIVISION]

Case No. [Case Number]

MARISOL VEGA, individually and on behalf of all others similarly situated, Plaintiff, v. SABLE RIDGE TRANSPORT, INC., Defendant.

PLAINTIFF'S REPLY IN FURTHER SUPPORT OF MOTION FOR CONDITIONAL CERTIFICATION

I. Introduction

Defendant Sable Ridge Transport, Inc. ('Sable Ridge') does not dispute the central fact that drives this motion: its written meal-break policy required drivers to remain on-call and responsive to dispatch during unpaid thirty-minute breaks. Instead of confronting that policy, Sable Ridge's opposition retreats to individualized-inquiry arguments that this Court and others in this Circuit have repeatedly rejected at the conditional certification stage. Plaintiff respectfully submits this reply to address the three arguments raised in opposition and to reaffirm that the modest factual showing required at this stage has been met.

II. Argument

A. Sable Ridge's Individualized-Inquiry Argument Is Premature

Sable Ridge argues that variations among drivers' routes, terminals, and supervisors defeat similarity. That argument addresses the merits and the eventual decertification inquiry, not the lenient first-stage standard. Plaintiff's declarations and the deposition testimony of the lead plaintiff establish a common policy applied on a company-wide basis: drivers were required to carry company-issued communication devices during breaks and were subject to discipline for failing to respond to dispatch. Whether damages ultimately require individualized calculation is irrelevant to whether the class is 'similarly situated' for notice purposes.

B. The Declarations Submitted Are Sufficient at This Stage

Sable Ridge's challenge to the sufficiency of Plaintiff's supporting declarations mistakes the applicable standard for the summary-judgment standard. Courts in this Circuit require only 'substantial allegations' that putative class members were subject to a single decision, policy, or plan. The declarations here, corroborated by the lead plaintiff's deposition testimony and by documents produced in discovery describing the break policy, comfortably clear that bar.

C. Notice to the Putative Class Should Issue Promptly

Delay in notice prejudices absent class members whose claims continue to run against the statute of limitations. Plaintiff requests that the Court approve the proposed notice and consent forms submitted with the original motion and order notice to issue within fourteen days.

III. Conclusion

For the foregoing reasons, and for the reasons set forth in the original motion, Plaintiff respectfully requests that the Court grant conditional certification, approve the proposed notice, and order Sable Ridge to produce the contact information for all putative collective members within fourteen days.

Respectfully submitted,

/s/ [Attorney Name] Counsel for Plaintiff

Certificate of Service

I hereby certify that on this date a true and correct copy of the foregoing was served on all counsel of record via the Court's electronic filing system.